



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

April 13, 2020

### POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201808925 regarding Sergeant Michael Straniere, Tax No. [REDACTED] (DADS No. 2019-20556)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including Body Worn Camera video evidence and determined that Sergeant Straniere will receive no disciplinary action.

In this matter, Sergeant Straniere entered the room of the complainant and directed EMS to remove her to the hospital for evaluation. Sergeant Straniere entered the room of the complainant after he was notified that the complainant suffered from mental health issues, including past suicidal tendencies, was a danger to herself, and had ripped signs/posters off of the wall in a residential facility for persons with a history of mental illness. Additionally, Sergeant Straniere entered the room only after attempts to communicate with the complainant failed. This was reasonable in that the complainant may have needed medical assistance.

Further, Sergeant Straniere's decision to have EMS remove the complainant for evaluation was also reasonable, as it was not retaliatory or in an effort to harm the complainant. rather it was a decision to have the complainant professionally evaluated because it was reasonably possible the complainant may have been a danger to herself or others.

DEPT. ADVOCATE OFFICE  
ADMINISTRATIVE  
NYPD  
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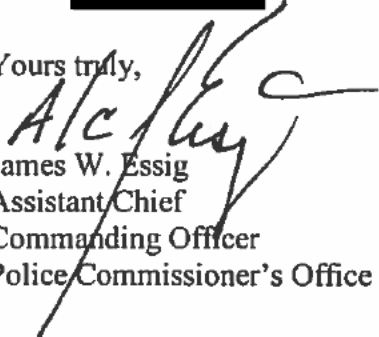
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Therefore, the Police Commissioner directs that Sergeant Straniere receive no disciplinary action for this matter.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



James W. Essig  
Assistant Chief  
Commanding Officer  
Police Commissioner's Office